

FORTY-THIRD MEETING
of the
INTERNATIONAL COMMITTEE of LEGAL METROLOGY
Sydney, 28 & 31 October 2008
Resolutions

Resolution no. 1

The Committee approved the Minutes of the 42nd CIML Meeting without modification.

Resolution no. 2

The Committee welcomed Montenegro as a new Corresponding Member and expressed its appreciation for the growing interest shown by many countries in joining the OIML.

The Committee instructed its President and the Bureau to continue to raise the level of awareness of the advantages of OIML Membership, in order to encourage the widest possible participation in the International Legal Metrology System.

Resolution no. 3

The Committee rejected the appeal from Greece concerning its contributory class.

Resolution no. 4

The Committee decided to strike Cameroon and Ethiopia off the list of Member States in application of Article XXIX of the Convention.

The Committee further resolved that in application of Article XXIV of the Convention, the Conference would be requested to consider whether these countries should be granted the opportunity to reduce their debt over a period of time to be determined, in which case the Committee's decision would be suspended. Failing acceptance by the Conference, they would be struck off the list of Member States as decided by the Committee.

Resolution no. 5

The Committee took note of the decision by the 13th Conference to grant Cameroon a delay of six months to significantly reduce its arrears.

Resolution no. 6

The Committee instructed its President and the Bureau to strike Zambia off the list of Corresponding Members.

Resolution no. 7

The Committee took note of an oral presentation given by its President on the activities of the Presidential Council.

Resolution no. 8

The Committee approved the allocation of the position of “Facilitator for developing country activities” to Mr. Eberhard Seiler.

Resolution no. 9

The Committee approved the setting up of an OIML Award “for excellent contributions from developing countries to legal metrology” and requested the Bureau to finalize the arrangements for this Award, so that the first candidates could be proposed at the 44th Committee Meeting in 2009.

Resolution no. 10

The Committee expressed its appreciation for the excellent cooperation between the Presidential Council and the Bureau of the CIPM, as well as between the BIML and the BIPM.

The Committee requested the BIML to circulate the joint report of the BIPM and BIML Directors to all CIML Members with a view to collecting their comments.

Resolution no. 11

The Committee expressed its appreciation for the excellent cooperation with ILAC and the IAF and instructed its President and the Director of the Bureau to pursue this cooperation and to develop and implement joint work programs with these two organizations.

Resolution no. 12

The Committee took note of the ongoing work on the revision of the MoUs with ISO and the IEC and instructed the Bureau to pursue this revision, taking into consideration the specific aspects of importance to legal metrology and to the OIML.

Resolution no. 13

The Committee expressed its appreciation for the excellent cooperation with UNIDO and instructed its President and the Director of the Bureau to pursue the work on drawing up the Memorandum of Understanding (MoU) with UNIDO and the BIPM, taking into account the respective missions of the three Organizations.

Resolution no. 14

The Committee noted the importance given to OIML publications and conformity assessment and certification systems in the implementation of the WTO/TBT Agreement. It instructed its President and the Director of the Bureau to continue to cooperate with the WTO and to promote the OIML as an organization facilitating compliance with the WTO/TBT Agreement.

Resolution no. 15

The Committee took note of the report on the Round Table with the Regional Legal Metrology Organizations (RLMOs). It instructed its President and the Director of the Bureau to continue this work with a view to strengthening mutual cooperation and improving the coherence of the work and, if appropriate, the signing of an MoU.

Resolution no. 16

The Committee emphasized the importance of the OIML maintaining close relations with Organizations representing legal metrology stakeholders and encouraged the latter to participate in OIML work. It instructed its President and the Director of the Bureau to continue to identify such stakeholder organizations and to raise their awareness of OIML work.

Resolution no. 17

The Committee encouraged the Bureau to progress as quickly as possible in finalizing the revision of the Directives for OIML Technical Work.

Resolution no. 18

A Draft OIML Publication approved by the Committee shall be available on the OIML web site immediately after approval, for reference purposes and in order for manufacturers and OIML Issuing Authorities to begin preparing for issuing Certificates in the future. However it is not permitted to issue an OIML Basic Certificate based on the Draft.

The official date from which an OIML Basic Certificate can be issued is the date on which the OIML Publication appears on the OIML web site. This date shall be recorded in the table of Publications available on the OIML web site.

The date from which an OIML MAA Certificate can be issued is specified in the corresponding DoMC.

Resolution no. 19

As soon as an OIML Recommendation, including the Test Report Format is published, the relevant OIML Recommendation is automatically included in the OIML Basic Certificate System. The Bureau will publish the appropriate information on the web site.

If a new version of an OIML Recommendation is published, the earlier version is maintained in the OIML Basic Certificate System or in the relevant OIML DoMC, together with the new version.

A comparison document between the two versions, drawn up by the appropriate TC/SC Secretariat, is no longer required.

Note: The last part of the Resolution results in withdrawing the requirement defined in 6.6.1 of OIML B 3: 2003.

Resolution no. 20

The OIML Basic Certificate System and the OIML MAA are maintained in parallel for categories under the MAA until the Committee decides to stop the implementation of the OIML Basic Certificate System. The proposal to stop the OIML Basic Certificate System for a particular category shall be examined, as appropriate, by the Committee independently for each category covered by the MAA. A two-year period (after the Committee decision) shall be allowed before stopping the OIML Basic Certificate System for the relevant category.

For the time being, Issuing Participants shall not issue OIML MAA Certificates in the event that results of tests outside the scope of the DoMCs are taken into account (e.g. test results from manufacturers) in the Evaluation Reports. In this case an OIML Basic Certificate may still be issued as long as the MAA does not provide this possibility.

The Committee supports the intention of TC 3/SC 5 to further discuss the acceptance of manufacturers' test results, with the aim of ultimately including them in the scope of the MAA if consensus can be reached on the conditions to be applicable to manufacturers ISO/IEC 17025 test laboratories.

Resolution no. 21

After the OIML Basic Certificate System for a particular category of instrument has been stopped, when an applicant requests a revision (see the Note below) of an OIML Basic Certificate based on the same version of the OIML Recommendation, which has been subsequently covered by the MAA, the revised OIML Basic Certificate may be issued by the original OIML Issuing Authority even if it is not an Issuing Participant in the relevant DoMC, or by an Issuing Participant in the DoMC.

Also after the OIML Basic Certificate System for a particular category of instrument has been stopped, if a new Certificate is applied for, based on the new version of the OIML Recommendation, then an OIML Basic Certificate cannot be issued any more. Rather, an OIML MAA Certificate shall be issued. Therefore the application can only be made to an Issuing Participant in the relevant DoMC.

Note: A Certificate is considered to be a 'revision' when the basis for issuing the revised Certificate is the same edition of the Recommendation as was used when issuing the original Certificate. A Certificate is considered to be 'new' when the Certificate is issued on the basis of the new version of the Recommendation, even if some results of tests conducted when issuing the original Certificate are still valid and used for issuing the new Certificate.

Resolution no. 22

The Committee approved the following Publications:

- R 85-3:2008 *Automatic level gauges for measuring the level of liquid in stationary storage tanks Part 3: Report format for type evaluation*
- R 99-3:2008 *Instruments for measuring vehicle exhaust emissions Part 3: Report Format*
- D 29:2008 *Guide for the application of ISO/IEC Guide 65 to assessment of measuring instrument certification bodies in legal metrology*
- D 30:2008 *Guide for the application of ISO/IEC 17025 to the assessment of Testing Laboratories involved in legal metrology*
- D 31:2008 *General requirements for software controlled measuring instruments*

Resolution no. 23

The Committee expressed its appreciation for the first training session provided by the BIML to certain TC/SC Secretariats in April 2008 and instructed the Bureau to extend this training to those Secretariats which did not participate, and to organize updates as necessary.

Resolution no. 24

The Committee approved the withdrawal of the following publications:

V 3	<i>Hardness testing dictionary (quadrilingual)</i>
R 9	<i>Verification and calibration of Brinell hardness standardized blocks</i>
R 10	<i>Verification and calibration of Vickers hardness standardized blocks</i>
R 11	<i>Verification and calibration of Rockwell B hardness standardized blocks</i>
R 12	<i>Verification and calibration of Rockwell C hardness standardized blocks</i>
R 36	<i>Verification of indenters for hardness testing machines</i>
R 37	<i>Verification of hardness testing machines (Brinell system)</i>
R 38	<i>Verification of hardness testing machines (Vickers system)</i>
R 39	<i>Rockwell hardness machines</i>
R 121	<i>The scale of relative humidity of air certified against saturated salt solutions</i>
D 15	<i>Principles of selection of characteristics for the examination of measuring instruments</i>

Resolution no. 25

The Committee approved the following new work items:

Revision of V 1:2000	<i>International Vocabulary of Legal Metrology</i>
Revision of R 91:1990	<i>Radar equipment for the measurement of the speed of vehicles</i>
Revision of D 11:2004	<i>General requirements for electronic measuring instruments</i>
New project: Document	<i>Software – Methods and means of verification</i>
Revision of the requirements in R 138 on measuring container bottles by TC 6	
Revision of R 49:2006	<i>Water meters intended for the metering of cold potable water and hot water</i>
Revision of R 18:1989	<i>Visual disappearing filament pyrometers</i>
Revision of R 60:2000	<i>Metrological regulation for load cells</i>
Revision of R 16:2002	<i>Mechanical non-invasive sphygmomanometers</i>

The Committee cancelled the following project:

TC 9/SC 4 p1: *Density value of aqueous sucrose solutions*

Resolution no. 26

The Committee decided to disband OIML TC 10/SC 5 *Hardness standardized blocks and hardness testing machines*.

The Committee approved the new names and scopes of the following Technical Committee and Subcommittee:

TC 5 *General requirements for measuring instruments*

TC 5/SC 1 *Environmental conditions*

The Committee allocated the Secretariats of the following Technical Committee and Subcommittees:

TC 7/SC 4 allocated to the USA

TC 12 allocated to Australia

TC 17/SC 1 allocated jointly to China and the USA

The Committee decided to submit the TC 16/SC 1 draft for a new Recommendation "*Instruments for continuous measuring SO₂ in stationary source emissions*" to direct CIML online approval.

Resolution no. 27

The Committee took note of Resolution no. 4b of the 13th Conference asking for the revision of D 1 and instructed TC 3 to take appropriate action.

Resolution no. 28

(Deleted)

Resolution no. 29

The Committee voted to renew the contract of Mr. Ian Dunmill, Assistant Director of the Bureau.

Resolution no. 30

The Committee approved the Draft Conference Agenda with the following modifications:

Revision of ISO 3930/OIML R 99 Part 1 and Part 2 is added to the list of OIML Recommendations to be submitted for Direct Sanction by the Conference (agenda item 4.1.2).

Item 8.1 (on a new category of OIML membership) is withdrawn.

Resolution no. 31

The Committee thanked Kenya for its presentation on the venue of the 44th Committee meeting to be held in Kenya in 2009.

Resolution no. 32

The Committee thanked the USA for inviting the Committee to hold its 45th meeting in the USA in 2010, and accepted this invitation. ■